Signé PAR Em

No. 35

COLLECTION

QUEBEC & LEGAL

Understanding the Real Estate Brokerage Act

Your rights as a consumer.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

© 2026 Emilie Cauvier - La Bibliotheque. All rights reserved. Any reproduction, distribution, sharing or resale, in whole or in part, by any means, is strictly prohibited without prior written authorization. This guide is for the purchaser's personal use.

Understanding the Real Estate Brokerage Act · Collection Quebec & Legal · Guide No. 35 · 2026 Edition

COLLECTION QUEBEC & LEGAL · GUIDE NO. 35

Understanding the Real Estate Brokerage Act

Your consumer rights — how real estate brokerage is regulated in Quebec

---

In Quebec, real estate brokerage is regulated by law and monitored by the OACIQ, whose mission is to protect the public. Understanding this framework means knowing your rights - whether you're buying or selling.

This guide explains the role of the OACIQ, the protections you benefit from, and the documents and obligations that govern a transaction.

Informative content. Each chapter ends with a lined “My Notes” page.

In Quebec, real estate brokerage is regulated by law and monitored by the OACIQ, whose mission is to protect the public. This guide explains your rights: the role of the OACIQ, your protections, standardized contracts, the broker's duties and your recourses.

The common thread: knowing this framework means buying and selling knowing that you are protected.

CHAPTER

The OACIQ and its mission

> *Know who protects the public.*

The Self-Regulation of Real Estate Brokerage of Quebec (OACIQ) supervises all brokers in the province: issuing and renewal of permits, mandatory training, ethics, inspection and handling of complaints.

Its primary mission is not to defend brokers, but to **protect the public**. Doing business with a broker holding a valid license means benefiting from all this supervision - and recourse mechanisms if something goes wrong.

- Public register: each broker’s license can be verified online.
- Continuing training required to stay up to date.
- Code of ethics governing professional conduct.

Concretely, the OACIQ issues permits, imposes training, monitors practices and handles complaints. Checking your broker's license in the public register takes thirty seconds and confirms that you are protected by all this supervision.

> EMILIE'S ADVICE
>
> *Before signing anything, enter the name of your broker in the OACIQ register. Thirty seconds which confirm that the person is indeed authorized to represent you.*

CHAPTER

Your protections as a consumer

> *Know the mechanisms that protect you.*

The law puts in place several safety nets, whether you are a buyer or seller:

- **Standardized forms** : regulated contracts and declarations, the same for everyone.
- **Duty of information and verification** from the broker.
- **Trust** : deposits are held in a protected account, separate from the broker's funds.
- **Compensation fund and insurance** in the event of professional misconduct.

These protections govern the behavior of the broker throughout the transaction, from the first meeting until signature at the notary.

These protections apply whether you are a buyer or seller, and cover the entire course of the transaction - from trust amounts to compensation in the event of fault. They do not depend on your trading skills, but on going through a licensed broker.

> EMILIE'S ADVICE
>
> *Your protections do not depend on your ability to negotiate: they are provided for by law. But they only come into full play if you go through a licensed broker.*

CHAPTER

Standardized contracts for a transaction

> *Understand framed documents.*

A regulated transaction is based on standardized contracts, designed to be fair and clear:

- **Brokerage contract** (seller or buyer): defines the mandate and fees.
- **Promise to purchase** : the offer and its conditions.
- **Seller's declarations** : what he knows about the property.

The broker must verify certain information and advise you before you sign. Reading and understanding these documents is not a formality: it is a right - and a good habit.

The standardized forms (brokerage contract, promise to purchase, declarations) are designed to be fair and clear. Take the time to read them: it's a right, and a good broker explains them to you clause by clause rather than making you sign in a hurry.

> EMILIE'S ADVICE
>
> *A good broker never makes you sign "quickly". He takes the time to explain each clause to you. If you don't understand a passage, ask - that's exactly its role.*

CHAPTER

The broker's duties towards you

> *Know what the law requires of him.*

Beyond the forms, the broker is required to **professional obligations** precise. Knowing them helps you recognize good support - and respond if something goes wrong.

- **Duty to advise** : inform you objectively, even when the truth is unpleasant.
- **Verification** : validate the information before disseminating it.
- **Disclosure** : disclose any factors that may affect your decision (including a conflict of interest).
- **Fair treatment** of the parties to the transaction.

These duties exist whether the broker represents you directly or not: the law protects the entire public.

The duty to advise requires the broker to inform you objectively, to verify before disseminating, to disclose any conflict of interest and to treat the parties fairly. Be wary of a broker who pushes you to decide quickly or minimizes a defect: this is exactly the opposite of his role.

> EMILIE'S ADVICE
>
> *Be wary of a broker who pushes you to decide quickly or who minimizes a default. The duty of advice is precisely to tell you what you need to hear, not just what makes you happy.*

CHAPTER

In the event of a problem: your recourses

> *Know the avenues of appeal.*

If a dispute arises, you are not alone. Several remedies exist, graded according to severity:

1. **Talk about it first** to the broker and his agency: many misunderstandings are resolved there.
2. **Assistance from the OACIQ** : information and support for the public.
3. **Formal complaint** to the trustee in the event of an ethical breach.
4. **Compensation** possible via the fund provided in the event of fraud or serious misconduct.

Keep all your documents and written exchanges: they are valuable if you need to assert your rights.

In the event of a dispute, the remedies are graduated: first speak to the broker and his agency, then assistance from the OACIQ, a complaint to the trustee, and compensation in the event of serious misconduct. Keep all your documents and written exchanges: they are the proof.

> EMILIE'S ADVICE
>
> *Keep a written record of everything: emails, signed forms, meeting notes. In the event of a dispute, it is these documents that make the difference, not the memories.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Check the broker's license in the OACIQ register.
2. Inform me of my consumer rights.

Within 30 days

1. Read contracts carefully before signing.
2. Keep copies of all documents.

Then

1. Knowing that the OACIQ is there in the event of a problem.

Useful reflexes

1. Check my broker's license in the OACIQ register.
2. Read each contract before signing and keep all my copies.

REFERENCES

Resources & glossary

- OACIQ: organization that regulates brokerage and protects the public.
- Brokerage license: to be verified in the OACIQ register.
- Trust: protected account where the deposit sums are held.
- Brokerage contract: structured agreement between client and broker.
- Duty to advise: obligation to inform and advise the client.

- OACIQ: organization that regulates brokerage and protects the public.
- Trust: protected account where the deposit sums are held.
- Duty to advise: obligation to inform and advise objectively.
- Syndic: body receiving ethics complaints.
- Compensation fund: protection in the event of fraud or serious misconduct.

GO FURTHER

Quiz - test yourself

1. The primary mission of the OACIQ is to:

A) Defend brokers
B) Protect the public
C) Setting prices
D) Sell houses

2. Before signing, we should:

A) Ignoring the permit
B) Check the broker’s license in the OACIQ register
C) Sign without reading
D) Pay cash

3. Deposits are held:

A) By the seller
B) In trust, in a protected account
C) By the city
D) At the broker's, mixed with his funds

4. The transaction contracts are:

A) Improvised
B) Standardized and framed
C) Secrets
D) Optional

5. Reading the documents before signing is:

A) A waste of time
B) A right and a good habit
C) Prohibited
D) Reserved for the notary

6. The duty to advise requires the broker to:

A) Only say what pleases
B) Inform you objectively, even when it is unpleasant
C) Hide defects
D) Decide for you

7. A conflict of interest must be:

A) Hidden
B) Disclosed
C) Ignored
D) Billed

8. In the event of a dispute, the first step is often:

A) Proceed immediately
B) Talk to the broker and his agency
C) Give up
D) Change province

9. An ethics complaint is filed:

A) At the bank
B) To the OACIQ trustee
C) In the city
D) To the notary

10. To assert your rights, you must above all:

A) Trust your memory
B) Keep documents and written exchanges
C) Keep nothing
D) Wait

Answers

1. B - The OACIQ protects the public (chap. 1).
2. B - The license can be verified online (chap. 1).
3. B - The trust protects the sums (chap. 2).
4. B - Standardized forms (chap. 3).
5. B - It is a right (chap. 3).
6. B - Objective advice (chap. 4).
7. B - Duty of disclosure (chap. 4).
8. B - Much is resolved through dialogue (chap. 5).
9. B - The trustee deals with breaches (chap. 5).
10. B - The writings provide the proof (chap. 5).

Signé PAR Em

You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

Emilie Cauvier

RESIDENTIAL & COMMERCIAL
REAL ESTATE BROKER

(514) 774-9818

emilie@equipecauvier.com

guidesimmoquebec.com